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California lawmakers approve banning synthetic food dyes in schools. Will Newsom sign it?

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Days in California schools are numbered for snacks like Flamin' Hot Cheetos, some cereals, baked goods and other products that contain a number of synthetic food dyes.

State lawmakers on Thursday sent a bill to Gov. Gavin Newsom to ban schools, beginning in 2028, from distributing or selling products containing six common food dyes: red No. 40, Yellow 5, Yellow 6, Blue 1, Blue 2 and Green 3.

Products containing the additives could still be sold throughout the rest of the state; the ban only applies to California public schools and charter schools.

Assemblymember Jesse Gabriel, D-Encino, the bill's author, said the "dangerous" synthetic ingredients "harm our children (and) interfere with their ability to learn."

Gabriel has cited a state study linking synthetic food dyes with hyperactivity and neurological behavioral problems in children.

The San Fernando Valley Democrat noted the bill had received bipartisan backing and was supported by doctors, teachers and agricultural groups.

"I know many of you were skeptical about this effort when we first started, but you have taken the time to listen and to learn and to look at the research and the science and the evidence and the data" he said before the legislation's final vote. "The issue of food safety is and should be a bipartisan one."

His bill passed the Assembly by a 55-0 vote.

Industry groups representing candymakers opposed the bill, arguing it would overstep the FDA's authority.

"All of these additives have been thoroughly reviewed by the federal and state systems and many international scientific bodies and continue to be deemed safe," the Consumer Brands Association wrote against the measure.

Gabriel authored a similar bill last year to ban four other food additives from being sold anywhere in California beginning in 2027.

Among the ingredients that law will ban is brominated vegetable oil, which is used to prevent separation in some citrus-flavored drinks.

Earlier this month, the federal Food and Drug Administration voted to ban brominated vegetable oil from use in food products for human consumption.

"The work we're doing here is driving this debate nationally," Gabriel said.

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